

## HEADNOTE

*“The UPC has no jurisdiction over actions for determination of damages based on a final decision in patent infringement proceedings before a national court. Article 32 lit. a) UPCA opens jurisdiction of the UPC for the determination of damages only after a preceding action for patent infringement before a chamber of the UPC. Article 32 lit. f) UPCA establishes jurisdiction only for actions for damages or compensation based on the provisional protection afforded by a published application for a European patent. The assertion of damages also finds its basis in the provisional protection afforded by a published application for a European patent. The recognition of a national judgment on determination of damages cannot establish jurisdiction of the UPC for the determination of damages.”*

**COURT**  
Local Division in Hamburg

**PROCEEDINGS**  
Procedural order

**PATENT**  
**EP 1 740 740 B1**

Compact service module which is intended for electrolytic aluminium production plants

**KEYWORDS**

damages determination

jurisdiction

provisional protection

published application

national court proceedings

**Article 32** Competence of the Court**SUMMARY**

The Local Division in Hamburg issued a procedural order. The patent at issue relates to a compact service module which is intended for electrolytic aluminium production plants. According to the headnotes of the decision, the UPC lacks jurisdiction to hear damages claims that are based solely on a final judgment from national court proceedings on patent infringement. The UPC may determine damages only when an infringement action has first been brought before a UPC chamber under Article 32 lit. a) UPCA. The UPC does have jurisdiction over damages claims that arise from the provisional protection granted by a published European patent application under Article 32 lit. f) UPCA. A damages claim grounded in provisional protection from a published application can therefore fall within the UPC's jurisdiction independently. The mere recognition or enforcement of a national court judgment on damages does not establish UPC jurisdiction to determine damages afresh.